➢ What do you mean by constitution? Discuss the main contents of the constitution of Bangladesh. **……..…*Previous year* …… *5 marks.***

Answer:

Constitution: Meaning

The Constitution is the supreme law of a country that defines **how the state is organized, the powers of government, and the rights and duties of citizens**.It is the **fundamental legal framework** that guides all other laws and ensures order in the country.

Key points:

- Determines the **structure of government** (legislature, executive, judiciary).
- Protects **fundamental rights** of citizens.
- Establishes **rules for elections, lawmaking, and administration**.

Main Contents of the Constitution of Bangladesh

The Constitution of Bangladesh was adopted on **4 November 1972** and came into effect from **16 December 1972**. Its main contents include:

A. Preamble

- Declares Bangladesh **sovereign, independent, democratic republic**
- Upholds **nationalism, socialism, democracy, secularism**
- Guarantees **fundamental rights** to all citizens

B. Fundamental Rights (Articles 26–44)

- Equality before law, no discrimination (religion, caste, sex, birthplace)
- Freedom of speech, assembly, movement, association, and religion
- Legal protection during arrest or detention

C. State Policy (Articles 8–25)

- Guides economic, social, and cultural policies
- Ensures **social justice, welfare, and balanced development**

D. The Executive (Articles 55–60)

- Defines roles of **Prime Minister and Cabinet**
- Shows **powers, responsibilities, and accountability**
- Presidential roles and appointments are specified

E. Parliament / Jatiya Sangsad (Articles 66–79)

- Composition and functions of Parliament
- Term of Parliament and lawmaking procedure

F. The Judiciary (Articles 94–108)

- Supreme Court: **Appellate & High Court Divisions**
- Appointment, tenure, and independence of judges
- Supreme Judicial Council maintains judicial discipline

G. Elections & Election Commission (Articles 118–123)

- Independent Election Commission runs free and fair elections
- Makes electoral rolls and defines constituencies

H. Amendments (Articles 142–147)

- Constitution can be **amended**
- Bangladesh has **17 amendments**

- Changes include democracy, secularism, women's representation, caretaker governments, judiciary powers

➢ Describe the constitution development in Bangladesh in 1972.
……..…Previous year …… 5 marks.

Answer:

The Constitution of Bangladesh was developed in 1972 after the country gained independence. A special committee was formed to write the Constitution. It was approved by the Constituent Assembly on **November 4, 1972**, and it came into effect on **December 16, 1972**.

The Constitution declared Bangladesh as a **sovereign, unitary, and democratic republic**. It ensured the **fundamental rights** of all citizens. The main principles of the Constitution were **nationalism, socialism, democracy, and secularism**.

This Constitution gave the people power in their own hands and built the foundation of a **free and fair society** in Bangladesh. **It also established the government structure and responsibilities clearly. It has been amended several times to meet changing needs. The Constitution remains the supreme law of the country.**

➢ Tenth Amendment:

- The **Tenth Amendment** of the Constitution was passed in **1990**.
- It changed **Article 65** of the Constitution.
- It **reserved 30 seats** in the **Jatiya Sangsad** (Parliament) **only for women**.
- The reservation was set for **10 years**.
- These women members are **elected by the other members of Parliament**.

➢ Eleventh Amendment:

- The **Eleventh Amendment** was passed in **1991**.
- It **approved all actions** of the caretaker government led by **Justice Shahabuddin Ahmed**.
- It also approved his **appointment as Vice President**.
- After **President Ershad resigned**, Shahabuddin Ahmed became **Acting President**.
- The amendment allowed him to **return to his earlier position as Chief Justice** of Bangladesh.

➢ Twelfth Amendment:

- The **Twelfth Amendment** was passed in **1991**.
- It **re-established the parliamentary system** of government in Bangladesh.
- The **President** became the **ceremonial (legitimate) chief of the State**.
- The **Prime Minister** became the **executive head** of the government.
- The **Cabinet**, led by the Prime Minister, became **responsible to the Jatiya Sangsad (Parliament)**.
- The **post of Vice-President** was **removed**.
- The **President** must now be **elected by the members of Parliament**.

➢ Thirteenth Amendment:

- The **Thirteenth Amendment** was passed in **1996**.

- It created a **non-party caretaker government** to manage general elections.
- This caretaker government **helps the Election Commission** to hold elections fairly and peacefully.
- The government consists of a **Chief Adviser** and up to **10 other advisers**.
- It is **accountable to the President**.
- The caretaker government **ends its work** on the day the new Prime Minister takes office after the election.

➢ Fourteenth Amendment:

- The **Fourteenth Amendment** was passed in **1994**.
- It **reserved 45 seats for women** in Parliament for the next 10 years.
- The **retirement age of Supreme Court judges** was **increased from 65 to 67 years**.
- The **images of the President and Prime Minister** must be displayed in all **government, semi-government, autonomous offices, and diplomatic missions abroad**.

➢ Fifteenth Amendment

- The **Fifteenth Amendment** was passed on **30 June 2011**.
- It **ended the caretaker government system** in Bangladesh.
- **Reserved seats for women** in Parliament were **increased from 45 to 50**.
- New **Articles 7(a) and 7(b)** were added to **prevent power takeover by extra-constitutional means**.
- **Secularism and freedom of religion** were restored.

- **Nationalism, socialism, democracy, and secularism** were reaffirmed as **fundamental principles** of state policy.

- **Sheikh Mujibur Rahman** was officially recognized as the **Father of the Nation**.

➢ Sixteenth Amendment:

- The **Sixteenth Amendment** was passed on **22 September 2014**.

- It gave **power to the Jatiya Sangsad (Parliament)** to **remove judges** if they were found incapable or guilty of misconduct.

- On **5 May 2016**, the **Supreme Court of Bangladesh** declared the amendment **illegal and against the Constitution**.

➢ Seventeenth Amendment:

- The **Seventeenth Amendment** was passed on **29 July 2018**.

- It **increased the tenure of 50 women parliamentarians** elected to reserved seats.

- Their **tenure was extended to 25 years**.